

Silencing by Design ? Copyright Enforcement, Platform Governance, and Democratic Participation in Kenya’s Digital Public Sphere A Discussion Paper on Platform Governance and Democratic Communication

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Abstract

This paper examines the intersection of copyright enforcement, platform governance, and democratic participation in Kenya’s digital public sphere. Drawing on documented cases from April 2024 and the #RejectFinanceBill2024 protests, it argues that regardless of what triggers a given mute a legitimate rights-holder match, an overzealous automated classifier, or a bad-faith report the effect of silencing political audio is a measurable loss to democratic communication. The paper deliberately stops short of alleging that any specific act of muting was intentional or politically motivated; its claim is about consequences, not motives. It situates this problem within Kenya’s constitutional guarantees of expression, access to information, media freedom, and assembly, and proposes a governance framework for platforms, regulators, and citizens that balances intellectual-property enforcement against those guarantees.

1 Introduction

In April 2024, and again during the #RejectFinanceBill2024 protests, Kenyans documented a recurring phenomenon on Facebook, TikTok, and YouTube: videos of political rallies, press briefings, and parliamentary proceedings uploaded with the picture intact but the sound stripped out. A caption would appear “audio removed due to a copyright claim” and the speech itself would vanish into silence. For a viewer scrolling past, the effect looks identical whether it was triggered by a rights-holder’s automated bot flagging a jingle playing in the background, a platform’s own moderation system misreading a crowd chant, or a third party filing a report for reasons that have nothing to do with music at all.

This paper does not claim to know which of those mechanisms was responsible in any specific case, and it deliberately avoids naming individuals or alleging

that any politician or party has been targeted. What it argues instead is narrower and, I think, more defensible: regardless of the cause, the effect of muting political audio is a measurable loss to democratic communication a loss of transparency, an increase in public suspicion, and an opening for misinformation to fill the silence. The paper treats this as a governance problem, not a conspiracy, and asks what follows from that for platforms, regulators, and citizens in Kenya’s digital public sphere.

2 Platform Governance and Automated Copyright Systems

Copyright enforcement on major platforms is now overwhelmingly automated. YouTube’s Content ID, and comparable systems on Meta’s platforms, scan uploaded audio and video against a database of registered works and act on matches without human review in the first instance. When a match is found, the standard outcomes are muting the affected audio, blocking monetisation, restricting the video’s reach, or, in more severe cases, removal following a formal notice. A copyright claim commonly results in the claimed audio segment being muted, and if the video was being monetised, that revenue is redirected to the rights holder rather than the uploader. [1] Disputing the claim requires the uploader to prove a licence or permission exists a burden that is trivial for a large broadcaster with a legal department and considerable for an independent journalist or a citizen filming with a phone.

Two structural features of these systems matter for political content specifically. First, they are content-blind in a narrow technical sense: a Content ID match is triggered by an audio fingerprint, not by an assessment of newsworthiness or public interest, so a campaign rally with a snippet of licensed music playing in the background can be muted in exactly the same way as a pirated film upload. Second, the systems are asymmetric in who can use them: rights holders and, separately, anyone able to file a takedown or reporting request, hold disproportionate power over what is heard, while the burden of dispute and delay falls on the uploader. Kenyan platform governance research has already flagged this asymmetry in the adjacent context of government content-removal requests. Government requests for removal typically cite defamation, privacy violations, impersonation, hate speech, national security, and content deemed capable of inciting unrest, and similar patterns exist elsewhere involving copyright infringement and posts perceived as threats to political stability. [2] Copyright takedown and muting sit inside this same broader ecosystem of automated and semi-automated content governance, but with even less transparency, because copyright systems are privately administered and rarely subject to public reporting in the way government requests sometimes are.